

ELIZABETH II



1972 CHAPTER i

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936, relating to
the Clyde Port Authority. [10th February 1972]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act, 1936, and it is requisite that the said 1936 c. 52.
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty,
by and with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule here- Confirmation
unto annexed is hereby confirmed. of Order in
schedule.

2. This Act may be cited as the Clyde Port Authority Order Short title.
Confirmation Act 1972.

SCHEDULE

CLYDE PORT AUTHORITY

Provisional Order to authorise the Clyde Port Authority to establish a new superannuation scheme; to increase certain borrowing powers of that Authority; and for other purposes.

Whereas—

1965 c. xlv.

(1) By the Clyde Port Authority Order 1965 the Clyde Port Authority (hereinafter called “the Port Authority”) was incorporated for the purpose of maintaining and improving the port of Clyde and for other purposes set forth in that Order:

(2) It is expedient that power be conferred on the Port Authority to convert their existing superannuation scheme to a scheme administered under trust deed:

(3) It is expedient that the powers of the Port Authority to make temporary borrowings be increased as in this Order provided, and that the other provisions of this Order be enacted:

1936 c. 52.

(4) The purposes aforesaid cannot be effected without an order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

Now therefore, in pursuance of the powers contained in the said Act of 1936, the Secretary of State orders as follows:—

Short title
and citation.

1.—(1) This Order may be cited as the Clyde Port Authority Order 1971.

(2) This Order shall be included among the orders which may be cited together as the Clyde Port Authority Orders 1965 to 1971.

Interpretation.

2.—(1) In this Order expressions to which meanings are assigned by the Order of 1965 shall have the same respective meanings, and—

“enactment” means any Act, any order, scheme, byelaw or other instrument made under an Act and any provision in an Act or in such order, scheme, byelaw or instrument;

“the Order of 1965” means the Clyde Port Authority Order 1965, confirmed by the Clyde Port Authority Order Confirmation Act 1965;

“the Port Authority” means the Clyde Port Authority.

1965 c. xlv.

(2) References in this Order to any enactment shall be construed as references to that enactment as applied, extended, varied or amended by, or by virtue of, any other enactment including this Order.

Superannuation.

3.—(1) In this section—

“the funds” means the pension fund and the lump sum fund, and includes any other funds established under the powers of the trust deed or the rules;

“the rules” means the rules for the time being in force pursuant to this section and the trust deed;

“ the trust deed ” means such deed as may be entered into pursuant to subsection (2) of this section;

“ the trustees ” means the trustees for the time being in office pursuant to the trust deed.

(2) The Port Authority may enter into a trust deed establishing a new superannuation scheme in place of the scheme established by section 41 of the Order of 1965.

(3) In the establishment of a new superannuation scheme under this section the Port Authority shall secure that the rules relating to the scheme shall provide benefits for existing employees and beneficiaries not less favourable than those which apply in relation to such persons immediately before that scheme is established.

(4) On the coming into effect of the trust deed, or on such later day as may be thereby appointed for the purpose of such vesting, the funds shall vest in the trustees and shall thereafter be held, managed and controlled by them, either as one fund or as separate funds, in accordance with the provisions of the trust deed and the rules.

(5) So much of the moneys at any time vested in the trustees under or by virtue of the trust deed as is not applied under the provisions of that deed in payment of any superannuation allowance or otherwise shall as soon as practicable be invested in such manner as may be approved by a majority of the trustees.

(6) Every superannuation allowance or other payment made under a new superannuation scheme established under this section shall be alimentary and shall not be assignable or attachable for debt.

(7) On the establishment under this section of a new superannuation scheme the provisions thereof shall have effect in place of sections 41, 45 and 46 of and Schedule 2 to the Order of 1965, and section 47 of that Order shall thereupon have effect as if—

(a) the reference to section 41 thereof were a reference to this section; and

(b) except where the context otherwise requires, references to the Port Authority were references to the trustees.

4. Paragraph (ii) of the proviso to subsection (1) of section 50 (Power to borrow) of the Order of 1965 is amended by substituting for the words “ one million ” the words “ three million ”. Increased borrowing powers.

5. Section 42 (Transfer to pension and lump sum funds) of the Repeal Order of 1965 is hereby repealed.

6. The costs, charges and expenses of and incidental to the preparing for, obtaining and confirming of this Order and otherwise in relation thereto shall be paid by the Port Authority out of the revenues of their undertaking. Costs of Order.

*Clyde Port Authority Order
Confirmation Act 1972*

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